

Northgate Talent Partners LLC

www.northgatetalent.com

February 25, 2016

Michael Martin
Chief Operating Officer
Coleman Ltd

Dear Michael,

Thank you for entrusting this search to us. It means a great deal that you have asked Northgate to find the person who will lead your engineering organization, and we do not take the responsibility lightly. A leadership hire of this kind sets the direction of a function for years, and we treat it that way. This letter sets out what we have agreed, so that both of us can point to the same page later if a question ever comes up. I have tried to keep the language plain, even where the letter turns to terms. Nothing here should surprise you; it is simply our understanding, written down, and I am happy to talk through any line of it before you sign.

The assignment

You have engaged us, on a retained basis, to identify and recommend a Vice President of Engineering for Coleman Ltd. We understand the seat to be a senior operating role, reporting into your leadership team, with responsibility for the engineering function and the people in it. The written brief we build together at kickoff will govern the search, and we will hold ourselves to it rather than to a generic profile. If your sense of the role changes as we go, we will change the brief with you.

How we will work

A retained search runs in stages, and we will keep you close at each of them. We begin by mapping the market and agreeing a written specification for the role. From there we build a long list, approach the strongest names discreetly, and narrow to a slate we are willing to stand behind. You will meet that slate, we will manage the interviews and the scheduling around them, and we will complete thorough references before anyone receives an offer. Throughout, we describe candidates by their current role rather than by name in anything that circulates, and we ask you to do the same on your side. A careless word can end a good conversation, so the discretion is not a formality; it is how the work gets done.

The people on your search

You will work with a small team. James Grant, our Senior Consultant, will lead the assessment of the senior candidates and bring his judgment to the shortlist. Jeffrey Patterson, our Research Consultant, will keep the search moving day to day and be your point of contact for scheduling and follow-up. John Chang, our Research Associate, will map the market and build the long list the consultants work from. I will stay close to the assignment myself and remain reachable to you at any point. If the chemistry with any of us is not right, tell me, and I will fix it.

Fee and start

Our fee for the assignment is \$105,000, and the engagement commences on March 6, 2016. The fee is a fixed professional fee for the search, not a percentage that moves with the eventual compensation, so you know the cost of the work at the outset and we have no incentive to steer you toward a more expensive hire.

Fees and payment

We invoice the fee in three parts across the life of the search. The first third falls due on commencement, the second on presentation of the agreed slate, and the final third on the successful candidate's acceptance of your offer. Reasonable out-of-pocket costs, such as travel we agree in advance, are billed at cost and itemized. Invoices are payable within thirty days of receipt.

Term, and how either of us may end it

The engagement continues until the role is filled or until either of us chooses to end it. If you decide to withdraw the assignment, the fee earned to that point remains payable and any portion not yet earned is not. If we find ourselves unable to serve you well, we will tell you plainly and part on fair terms. Neither of us should feel bound to a search that has stopped working, and in our experience saying so early is a kindness to both sides.

Confidentiality

Discretion is the heart of this work. We treat your search, your reasons for it, and the identities of the people we approach as confidential, and we expect the same care from you. Candidates who speak with us have not, as a rule, spoken to their current employers, and their trust is ours to protect. For that reason we write about candidates by their seat rather than their name until an offer is in hand, and we keep the circle of people who know the details as small as the work allows.

What we will need from you

A search moves at the speed of its client as much as its consultant. We will ask for prompt feedback after each round of interviews, for a single point of contact on your side so that messages do not cross, and for candor about how your thinking evolves. If your view of the role shifts as you meet people, tell us early and we will adjust the brief with you. The one thing that slows a search is silence, and we will do our part to make sure it never comes from ours.

Limitation of liability

We will bring real care and experience to the assignment, but we do not guarantee a hire, and our responsibility to you is limited to the fee paid for the search. We are not liable for indirect or consequential losses. Once we have done our work and presented our slate, the hiring decision rests with you, as it should.

Governing law

This letter is governed by the law of the state in which our office sits, and any dispute under it will be resolved there. We would much prefer to settle any disagreement in conversation, and over many years we almost always have.

If this reflects our understanding, please countersign below and return one copy to Jeffrey, who will open the file and confirm your kickoff session. We are glad to be working with you on this, Michael, and we are ready to begin. The one thing we need from you now is your countersignature.

Kelly Chavez

Managing Director

Date: February 25, 2016

Michael Martin

Chief Operating Officer, Coleman Ltd

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